The Crime & Society Review

Rethinking Crime, Justice & Society
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Walls Closing In: The Need For Prison Advocacy

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Abstract

Prison advocacy in the twenty-first century represents a paradigmatic shift from punitive incarceration to constitutional correction, human dignity, and social reintegration. In India, the prison system remains overburdened with an occupancy rate of 131.4% and under trial prisoners constituting 75.8% of total inmates (National Crime Records Bureau [NCRB], 2022). This structural crisis exposes deep fissures between constitutional guarantees under Articles 14, 19, 21 and 39A and ground realities of access to justice. The present article, situated within the theme of The Crime & Society Review – Rethinking Crime, Justice & Society, critically examines the historical evolution of prison reforms, contemporary challenges of overcrowding, legal aid deficits, and socio-legal exclusion of vulnerable groups including women, children, persons with mental illness, and Scheduled Castes and Tribes. Drawing upon doctrinal and empirical analysis, the paper conceptualizes prison advocacy as a rights-based, multi-stakeholder intervention encompassing free legal aid, timely bail facilitation under Section 479 of Bharatiya Nagarik Suraksha Sanhita (BNSS) 2023, legal literacy, psychosocial support including stress and anger management, and rehabilitation planning. The article presents a detailed case study of the Prison Advocacy Project at National Law University Odisha (NLUO), Cuttack, launched in 2024 in collaboration with Azim Premji Foundation, which has within one year interacted with 881 under trial prisoners, secured bail for 90 prisoners (60 free of cost), provided legal assistance in 28 cases, and conducted 52 legal awareness sessions covering 13 topics benefiting over 2000 inmates across Choudwar Circle Jail, Banki Sub-Jail, Bhubaneswar Special Jail and Khordha District Jail. The Banki Sub-Jail witnessed significant reduction in population, demonstrating efficacy of timely legal intervention. The paper argues that such academic-civil society-state partnerships must be institutionalized nationally as part of Sustainable Development Goal 16 and Digital Social Citizenship framework.

Keywords: Prison Advocacy, Under trial Prisoners, Legal Aid, Criminal Justice Reform, Rehabilitation, NLUO, Article 21, BNSS, SDG 16, Digital Social Citizenship

1. Introduction: Rethinking Crime, Justice And Society

India Justice Report 2025 prepared by consortium of eight organizations including Tata Trusts offers comprehensive audit of four pillars – police, prisons, judiciary, legal aid (India Justice Report, 2025). Odisha improved from 11th in 2022 to 8th in 2025, positive indication of systemic reforms, however beneath progress lies persisting alarming crisis surge in population of under trial prisoners which continues to strain prison infrastructure and challenge ideals of justice. As per Prison Statistics India

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2022, Indian prisons housed 5,73,220 inmates against sanctioned capacity 4,36,266, recording occupancy rate 131.4% (NCRB, 2022). More critically, 75.8% of these inmates were under trials – persons presumed innocent but confined due to inability to access bail or legal representation (NCRB, 2022). Approximately 65.4% of inmates are illiterate or educated below Class X, making it difficult to understand charge sheets, bail orders or legal remedies (NCRB, 2022). About 31% belong to Scheduled Castes and Tribes, and 80% come from poor and marginalized backgrounds (Centre for Research & Planning, Supreme Court of India, 2024).The colonial model viewed prison as institution to impose unpleasant compulsory isolation with rigid discipline and bare necessities (Taft, 1956). Post-constitutional India views prison through lens of Article 21 – right to life with dignity, as interpreted in Maneka Gandhi v. Union of India (1978) and Sunil Batra v. Delhi Administration (1978). Justice Krishna Iyer in Sunil Batra declared prisoners are not non-persons. In Hussainara Khatoon v. Home Secretary, State of Bihar (1979), Justice P.N. Bhagwati held that speedy trial and free legal aid are integral to Article 21, and lakhs of under trials languishing without trial is travesty of justice. Similarly, in M.H. Hoskot v. State of Maharashtra (1978) and Suk Das v. Union Territory of Arunachal Pradesh (1986), Supreme Court emphasized legal aid at state cost.Author's 2.5 decades experience in Labour & Employment Department, Government of Odisha, handling child labour, Dadan labour, migrant labour, rescue and rehabilitation, shows same marginalized communities who migrate for livelihood – poor, SC/ST, informal workers – disproportionately populate prisons, often for minor, survival-driven offences like ticketless travel, petty theft, loitering, linked to unemployment and lack of social security (NCRB, 2022).

Objectives:

(a) Trace historical evolution of prison reforms;

(b) Examine constitutional and legal safeguards including Section 479 BNSS 2023 and Supreme Court directives in In Re: Inhuman Conditions in 1382 Prisons (2024);

(c) Analyse contemporary challenges;

(d) Conceptualize prison advocacy as emerging 21st century paradigm;

(e) Present Prison Advocacy Project at NLUO as replicable best practice; (f) Recommend way forward including Digital Social Citizenship.

2. Conceptual Framework

Four theories of punishment: deterrent, retributive, preventive, reformative (Paranjape, 2019). Ancient India emphasized deterrence – Manusmriti recommended prisons along public roads so punishment visible. Colonial regime institutionalized deterrence via Prisons Act 1894. Post-independence, reformative theory gained primacy, influenced by international norms like UN Standard Minimum Rules for Treatment of Prisoners (Nelson Mandela Rules, 2015). Coyle (2002) argues prison management must be based on human rights, not merely security. Petersilia (2003) highlights importance of re-entry planning – housing, employment, family acceptance – to reduce recidivism.

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Prison defined under Section 3 Prisons Act 1894 includes any place used under order of court or competent authority for detention, including subsidiary jails, reformatories, Borstal institutions (Prisons Act, 1894). Model Prison Manual 2016 defines correctional institution as place where prisoners detained for reformation and rehabilitation, not merely punishment (Ministry of Home Affairs, 2016).

3. Historical Evolution

Ancient and Medieval: Ramayana mentions Lord Rama enquiring about state of prisons in Ayodhya. Mahabharata refers to karagriha and one of 18 state officials as head of prisons. Manusmriti recommends deterrent construction. Pre-Buddhist era infamous for cruelty – daily whippings, shackles, forced labour. Fa-Hien and Hiuen Tsang documented Emperor Ashoka's Naraka hellish prisons before conversion. Under Muslim rule, forts converted into prisons, relatively milder.Colonial: 1805 H.S. Strachey surveyed Company territories documenting 43 civil, 75 criminal, 68 mixed jails (Government of India, 1838). Macaulay Report 1835 – after murder of Magistrate Richardson, Superintendent Calcutta Jail, Lord Macaulay emphasized best criminal code ineffective without sound punishment mechanism – recommended abolition outdoor labour, indoor work, classification, inspectors, central jails. Prison Discipline Committee 1836-38 chaired by H. Shakespeare reported 1838, exposed corruption, recommended separation undertrial-convicted, IG Prisons. Commission on Jail Management and Discipline 1864 – minimum space 54 sq ft and 640 cubic ft, sanitation, diet, medical, gender-age separation. Calcutta Conference 1877 – unified framework. Fourth Jail Commission 1888 Lord Dufferin – echoed need consolidated Prisons Act – leading to Prisons Act 1894.Post-Independence: Indian Jail Committee 1919-20 landmark – shift deterrence to reformation, trained staff, juvenile justice, opposed child incarceration with adults. Government of India Act 1935 – prisons state subject. Reckless Commission 1952 – UN support Dr. W.C. Reckless – jails as reformative centres, juvenile courts, revision manuals, alternatives short imprisonment. Model Prison Manual 1960 – scientific correctional treatment. Mulla Committee 1980-83 – magnum opus – national prison policy, human rights, legal aid, living conditions, women, open prisons, aftercare.

4. Constitutional And Legal Safeguards

Sunil Batra (1978, 1980) – prisoners retain fundamental rights. Article 21 includes dignity, health, speedy trial, free legal aid (Hussainara Khatoon 1979). Article 39A obligation for free legal aid. Section 479 BNSS 2023 – mandates release of undertrials completing one-third for first-time offenders or one-half of maximum sentence. Supreme Court in Re: Inhuman Conditions in 1382 Prisons (W.P. 406/2013) order 23 Oct 2024 directed retrospective application of Section 479, jail superintendents to identify eligible women and undertrials, mandatory reporting. Model Prison Manual 2016 Rule 5.47 orientation programme, Rule 5.35 handbook rights. Early Access to Justice – police stations must display legal aid contact, inform arrestee rights, leaflet (D.K. Basu v. State of West Bengal, 1997). At police station – rights from interrogation, consult advocate, grounds of arrest, bail rights, leaflet, intimation to Legal Aid Committee. At prison – display rights, orientation, legal aid clinic, Undertrial Review Committee weekly.

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5. Contemporary Challenges

Overcrowding: 131.4% occupancy nationally, 75.8% under trial (NCRB 2022). Inability to afford legal representation major reason extended detention. Socio-Legal Exclusion: One-third under trials SC/ST, 80% poor backgrounds (Centre for Research & Planning 2024). Women, Juveniles, Mental Health: Women 4.2% population, 17% with children, 66% under trials. Juvenile Justice Act 2015 illegal to incarcerate below 18 in regular jails. Yet Odisha has only four observation homes Angul, Rourkela, Bhawanipatna, Berhampur for 30 districts forcing long travel for Juvenile Justice Board hearings. iProbono data based on 570 districts reveals 9,681 children under 18 wrongfully detained Indian jails Jan 2016-Dec 2021 (iProbono, 2022). Violence: Caste-based segregation banned in Sukanya Shantha v. Union of India (2024).

6. Emergence Of Prison Advocacy

Prison advocacy is organized intervention to ensure dignity, accountability, reintegration. As Justice P.N. Bhagwati observed, "Legal aid is not charity, but a necessary adjunct to administration of justice" (Hussainara Khatoon, 1979).

7. Case Study: Prison Advocacy Project NLUO-A 21St Century Model

Prison advocacy is defined as organized efforts by legal professionals, academicians, civil society, and community leaders to protect prisoners' rights, ensure access to justice, promote humane treatment, and facilitate reintegration (Coyle, 2002). In the 21st century paradigm, it moves beyond welfare to rights-based empowerment.

Advocacy encompasses:- Free, competent legal representation from arrest to acquittal; Facilitation of bail under Section 479 BNSS; Legal literacy and rights awareness; Psychosocial support — stress and anger management; Rehabilitation and reintegration planning .As Justice P.N. Bhagwati observed in Hussainara Khatoon (1979), "Legal aid is not charity, but a necessary adjunct to administration of justice."

Genesis-On 10th December 2020, coinciding with International Human Rights Day, Prison Establishment Day was observed for first time in Odisha, symbolizing shift from punitive to rehabilitative justice. Recognizing acute under trial crisis, National Law University Odisha (NLUO), Cuttack, in collaboration with Azim Premji Foundation, launched Prison Advocacy Project in 2024, piloted from February 2025.

Objectives and Scope-The project seeks to address socio-legal needs of vulnerable prisoners through: Providing free legal aid ensuring competent representation; Facilitating timely bail through efficient procedures; Promoting rehabilitation via counselling, education, skill development; Conducting monthly sensitization workshops on prisoners' rights Strengthening research and advocacy for systemic reforms. Initially piloted in four prisons — Circle Jail Choudwar, Sub-Jail Banki, Special Jail Bhubaneswar, and District Jail Khordha — the project has comprehensive mission (NLUO, 2025).

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Leadership and Vision-Under leadership of Prof. Dr. Ved Kumari (Vice-Chancellor), Prof. Dr. Rangin Pallav Tripathy (Registrar and Project Director), Dr. Kuntirani Padhan (Project Coordinator-cum-Assistant Professor), and Dr. Suman Dash Bhattamishra (Project Advisor, Associate Professor), the project bridges law and society (NLUO, 2025).

Impact: - Empirical Evidence -Within one year (Feb 2024-Feb 2025):881 under trial prisoners personally interacted for legal-social needs assessment; Bail secured for 90 under trials, including 60 free of cost;28 individual legal support cases pursued; 1 acquittal secured;52 legal awareness sessions covering 13 topics (bail, free legal aid, rights under BNSS, stress management, anger management, reintegration) benefiting 2000+ inmates; Most remarkable decline in Banki Sub-Jail population due to sustained bail assistance, demonstrating that timely legal aid directly reduces overcrowding (NLUO Prison Advocacy Project Report, 2025).Success attributed to cooperation of Odisha Prisons Department, jail authorities, legal professionals, civil society, and media including World Watch newspaper, Cuttack.

"Emerging Lessons from Field Interventions: Towards a Holistic Model of Prison Advocacy."

Case Study 1: Samir Naik – Overcoming Prolonged Detention through Legal Intervention and Social Support

Background: Samir Naik, aged 31, a resident of Alasua village, Cuttack district, was arrested on 23 June 2024 in connection with multiple theft-related cases. His prolonged detention adversely affected his family relationships and financial stability, compelling his wife and young son to move to her parental home.

Project Intervention: During a routine prison visit on 21 February 2025, the Prison Advocacy Project team identified his case and assessed his legal and social circumstances. Following sustained legal efforts, bail applications were filed before the Assistant Sessions Judge, Banki, on 5 June and 8 July 2025.

Outcome and Impact: Samir was released on bail on 14 July 2025. The Project subsequently facilitated compliance with court requirements and initiated efforts towards family reunification and restoration of his previous employment at a prawn processing factory in Chennai.

Significance: The case demonstrates how persistent legal assistance, combined with family-oriented social intervention, can help address the consequences of prolonged detention.

Case Study 2: Anam Paltasingh – Restoring Livelihood through Timely Legal Assistance

Background: Anam Paltasingh, aged 41, a mason from Kankadahada village, Khordha, was arrested on 16 August 2025 in connection with G.R. Case No. 772/2025. His detention disrupted his regular livelihood and family stability.

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Project Intervention: The Prison Advocacy Legal Fellow met him on 26 August 2025. A bail application was filed on 1 September 2025, while the Project staff conducted a home visit on 3 September to assess his family circumstances and facilitate arrangements for a bailer.

Outcome and Impact: Anam was released from District Jail, Khordha, on 17 September 2025. A subsequent home visit on 26 September facilitated his social reintegration. With the Project's support, he resumed his previous occupation as a mason.

Significance: The case illustrates the importance of combining timely legal intervention with livelihood restoration to ensure dignified rehabilitation.

Case Study 3: Harish Chandra Naik – Reclaiming Dignity through Legal and Social Advocacy

Background: Harish Chandra Naik, aged 35, a daily wage labourer from Alasua village, Cuttack, was arrested on 29 March 2025 in connection with two criminal cases. His incarceration affected the economic security of his wife and children.

Project Intervention: The Prison Advocacy Legal Fellow interacted with him on 11 April 2025. A home visit was subsequently conducted on 2 September to document his background and facilitate bail arrangements. The bail application was filed on 24 September 2025.

Outcome and Impact: The District and Sessions Judge, Cuttack, granted bail on 9 October 2025, and Harish was released from Banki Sub-Jail on 14 October 2025. The Project facilitated his social reintegration and return to daily wage employment.

Significance: This case highlights the importance of coordinated legal and social interventions in restoring livelihood, family stability and individual dignity.

Case Study 4: Jyoti Ranjan Naik – A Second Chance through Timely Legal Intervention

Background: Jyoti Ranjan Naik, aged 23, a daily labourer from Golobai village, Khordha, was arrested on 31 August 2025. His sudden detention disrupted his livelihood and affected his family's circumstances.

Project Intervention: On 26 September 2025, the Prison Advocacy Legal Fellow met him at District Jail, Khordha. The Project staff also conducted a home visit to assess his family background and facilitate bail-related arrangements. A bail application was promptly pursued.

Outcome and Impact: Jyoti was released on bail on 9 October 2025. Before his release, a home visit was conducted on 4 October to prepare his family and community for his return. Following his release, he resumed his previous occupation as a labourer.

Significance: The case demonstrates that effective prison advocacy requires not only legal assistance but also advance preparation for family and community reintegration.

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Case Study 5: Pravat Kumar Pradhan – Promoting Behavioural Change and Family Reconciliation

Background: Pravat Kumar Pradhan, aged 30, from Pasania village, Banki, was detained in connection with a domestic dispute involving alleged physical assault on his father. He remained in Sub-Jail, Banki, for 19 days.

Project Intervention: The Prison Advocacy Project team met him on 3 June 2025 and assessed his legal and personal circumstances. A bail application was filed before the District and Sessions Judge, Cuttack, on 11 June 2025.

Outcome and Impact: Pravat was granted bail and released on 20 June 2025. Following his release, the Project provided counselling and encouragement towards behavioural improvement, conflict resolution and family reconciliation. He was also supported in returning to his previous employment.

Significance: This case illustrates the role of prison advocacy in addressing not only legal difficulties but also underlying family conflicts and the need for behavioural reform.

Case Study 6: Rajkishore Mallick – Restoring Family Economic Stability through Rehabilitation

Background: Rajkishore Mallick, aged 40, a daily wage labourer from Badapari village, Khordha, was arrested on 25 June 2025. His detention deprived his wife and three children of their principal source of income.

Project Intervention: The Prison Advocacy Project identified his case during its regular legal aid visits. The team facilitated the filing of a bail application before the JMFC, Khordha, while also extending counselling support and coordinating with his employer for post-release employment.

Outcome and Impact: Rajkishore was released on bail on 23 July 2025. Following the intervention of the Project, he resumed his previous occupation, thereby contributing to the restoration of his family's economic stability.

Significance: The case demonstrates how legal assistance combined with employment-related support can reduce the economic vulnerability of families affected by incarceration.

Case Study 7: Ratnakar Hati – Access to Justice and the Importance of Legal Defence

Background: Ratnakar Hati, aged 23, a resident of Banara, Banki, was arrested on 15 September 2025 in connection with G.R. Case No. 20/2022, involving serious criminal allegations.

Project Intervention: The Prison Advocacy Legal Fellow met him on the day of his arrest and initiated legal assistance. The Project also conducted a home visit on 18 September

2025 to assess his social circumstances and prepare for his eventual return to the community.

Outcome and Impact: On 16 October 2025, the Additional District and Sessions Judge, Cuttack, acquitted Ratnakar. Following the judicial outcome, the Project facilitated his social reintegration and return to community life.

Significance: This case highlights the importance of effective legal representation, fair trial guarantees and social support in safeguarding the rights and dignity of individuals facing criminal proceedings.

Case Study 8: Dipak Kumar Naik – From Custody to Livelihood Restoration

Background: Dipak Kumar Naik, aged 25, a married daily labourer from Alasua village, Cuttack, was admitted to Banki Sub-Jail on 21 September 2026. His detention interrupted his livelihood and affected his family circumstances.

Project Intervention: During a routine prison visit on 22 September 2026, the Fellow (Social) interacted with him and assessed his legal and social needs. Advocate Ashutosh Mishra, Fellow (Law), filed a bail application before the District and Sessions Judge, Cuttack, on 1 October 2026.

Outcome and Impact: Bail was granted on 13 October, and Dipak was released on 14 October 2026. The Fellow (Social) subsequently conducted a home visit and engaged with family members and neighbours to facilitate his acceptance. He also resumed his previous occupation as a daily labourer.

Significance: The case demonstrates the effectiveness of coordinated legal and social interventions extending beyond release from custody.

Case Study 9: Pravakar Sahoo – Reuniting a Family through Integrated Intervention

Background: Pravakar Sahoo, aged 30, a driver from Malabiharpur village, Banki, was admitted to jail on 14 August 2026 in connection with a case under the Odisha Excise Act. His detention affected his wife and two young children, as he was the principal earning member of the family.

Project Intervention: The Fellow (Social Work) interacted with him on 18 August 2026. Following the intervention of the Legal Fellow, a bail application was filed on 19 August before the competent court.

Outcome and Impact: Bail was granted on 24 August, and Pravakar was released on 25 August 2026. A follow-up village visit was conducted on 7 September to facilitate family and community reintegration. He reunited with his wife and children and resumed his previous occupation as a driver.

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Significance: The case highlights the importance of family-centred rehabilitation and livelihood restoration in achieving sustainable social reintegration.

Case Study 10: Sanjay Kumar Pradhan – Rebuilding Life through Community Acceptance

Background: Sanjay Kumar Pradhan, aged 24, a married driver from G. Nahalpur village, Cuttack, was admitted to District Jail, Khordha, on 2 July 2026. His detention interrupted his professional activities and affected his family circumstances.

Project Intervention: During a routine jail visit on 15 July 2026, the Fellow (Social) assessed his circumstances. Subsequently, the Fellow (Law) filed a bail application before the Additional District Judge, Khordha, on 9 September 2026.

Outcome and Impact: Bail was granted on 19 September 2026, and Sanjay was released on the same day. Both Fellows subsequently conducted a home visit and interacted with his family members and neighbours to facilitate social acceptance. He successfully resumed his previous occupation as a driver.

Significance: This case demonstrates that community sensitisation and livelihood restoration are essential components of post-release rehabilitation.

Case Study 11: Saroj Naik – Strengthening Livelihood and Community Reintegration

Background: Saroj Naik, aged 42, a married daily wage labourer from Muktapur village, Banki, was admitted to jail on 21 July 2026. His detention affected his ability to earn and support his family.

Project Intervention: The Fellow (Social Work) interacted with him on 27 July 2026 and assessed his circumstances. The Project subsequently facilitated legal assistance through its Legal Fellow.

Outcome and Impact: Saroj was released on bail on 4 August 2026. On 7 August, the Social Work Fellow visited his village and facilitated his return to family and community life. He successfully resumed his previous occupation as a daily labourer.

Significance: The case reflects how timely legal assistance and post-release social support can protect livelihood opportunities and strengthen family and community relationships.

Case Study 12: Siba Parida – Integrating Psychosocial Support with Legal Assistance

Background: Siba Parida, aged 23, an unmarried driver from Kotalanga village, Khordha, was admitted to District Jail, Khordha, on 22 June 2026. During the initial interaction, the Fellow (Social Work) observed that he appeared disturbed and experienced difficulty communicating coherently.

Project Intervention: On 24 June 2026, the Fellow coordinated with the Jail Medical Department for his examination. The medical authorities found him medically and

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mentally fit, with no clinical mental illness detected. A home visit was also conducted to coordinate with his family and facilitate the necessary documents for bail.

Outcome and Impact: A bail application was filed on 24 June before the Additional District Judge, Khordha. Bail was granted on 6 July 2026. Following his release, the Fellow visited his village on 8 July and engaged with family members, relatives and neighbours to facilitate his reintegration.

Significance: The case highlights the importance of early psychosocial assessment, coordination with prison medical authorities, family engagement and timely legal assistance.

Case Study 13: Sushanta Behera – Restoring Family Relationships through Social Intervention

Background: Sushanta Behera, aged 38, a married resident of Lokeswarpur, Khordha Town, was lodged in District Jail, Khordha, on 17 July 2026 in connection with a case arising from a family dispute.

Project Intervention: During a routine prison visit on 7 October 2026, the Social Fellow of the Prison Advocacy Project interacted with him and assessed his circumstances. The Legal Fellow subsequently filed a bail application before the Additional District Judge, Khordha, on 13 October 2026.

Outcome and Impact: Bail was granted on 16 October 2026. On 30 October, the Social Fellow conducted a follow-up village visit and facilitated interaction with his family and community members. Through sustained social intervention, Sushanta was successfully reintegrated into his family and society.

Significance: The case illustrates the role of social work intervention in addressing family-related challenges and promoting acceptance and rehabilitation after release.

Case Study 14: Bipin Behera – Transformation through Legal Awareness and De-Addiction Motivation

Background: Bipin Behera, aged 42, a cow grazer from Similipur village, Banki, was lodged in Sub-Jail, Banki, as an under-trial prisoner. He had been struggling with habitual smoking.

Project Intervention: On 16 September 2025, he participated in a Legal Awareness Programme organised by the Prison Advocacy Project on the theme "Substance Abuse: Dangers and De-Addiction Support." The programme sensitised participants to the harmful effects of tobacco and substance use.

Outcome and Impact: Influenced by the awareness session, Bipin voluntarily pledged to quit smoking and adopt a healthier lifestyle. With continued encouragement and follow-up support, he remained committed to his decision. He was subsequently released on bail.

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Significance: The case demonstrates how prison-based legal awareness and behavioural sensitisation can motivate individuals towards positive lifestyle changes and personal reform.

Case Study 15: Barjabandhu Pradhan – Age Is No Barrier to Personal Transformation

Background: Barjabandhu Pradhan, aged 70, a farmer from Baraput village, Banki, was lodged in Sub-Jail, Banki, as an under-trial prisoner. He had a longstanding habit of tobacco consumption dating back to his childhood.

Project Intervention: On 16 September 2025, he participated in the Prison Advocacy Project's Legal Awareness Programme on "Substance Abuse: Dangers and De-Addiction Support." The session highlighted the physical, psychological and social consequences of substance use.

Outcome and Impact: Motivated by the programme, Barjabandhu voluntarily resolved to give up tobacco consumption and adopt a healthier lifestyle. Despite his advanced age and longstanding habit, he remained committed to his decision with continued motivation and follow-up support. He was subsequently released on bail.

Significance: His experience demonstrates that awareness, motivation and willingness to change can encourage personal transformation irrespective of age or circumstances.

8. Core Components – Stress, Anger, Reintegration

Stress Management: Deep breathing, meditation, structured routine, physical movement, positive thinking, emotional support. Right to healthcare: Article 21 includes health, Prison Act 1894 mandates facilities, Nelson Mandela Rules reinforce. If denied, right to consult doctors, counselling, legal intervention via Prison Welfare Officer, legal aid. Anger Management: Types – Passive Silent treatment, Aggressive Verbal/physical abuse, Assertive Healthy respectful expression. Legal implications – assault, domestic violence. Management – recognition, deep breathing, walking away, journaling, counselling (Howells et al., 2005).Reintegration: Educational literacy, vocational livelihood skills entrepreneurship, psychological counselling anger trauma recovery, social overcoming stigma rebuilding identity. Challenges – discrimination, housing, mental health, employment after release. Former inmates carry lifelong stigma. First-time offenders with support could rebuild lives, absence rehabilitation pushes back crime. World Bank (2023) each year incarceration reduces lifetime earnings 30-40%.

9. Changing Narratives: From Punishment To Reform And SDG 16

Traditional retributive view shifting to correctional philosophy. Inmates voicing concerns during inspections – cultural shift. SDG 16 connects prisoner rights to peaceful, inclusive societies, access to justice, accountable institutions (United Nations, 2015). SDG 17 partnerships – NLUO model. Global models: Norway principle normality recidivism below 20% vs 60-70% India/US (Pratt, 2008), South Africa ubuntu, US Equal Justice Initiative (Stevenson, 2014), UK Howard League (2022). India needs culturally rooted model combining legal aid, community participation, technology. Restorative justice

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(Zehr, 1990) repairing harm via dialogue, transformative justice questioning structural inequalities caste class gender poverty (Morris, 2000). For petty offences – theft food, ticketless travel – punitive incarceration fails. Bharatiya Nyaya Sanhita 2023 introduces community service. Link to MGNREGA, Food Security, PAReSHRAM. Economics: Per prisoner per year cost Rs 1,10,000 (MHA 2022). 4,34,302 under trials annual cost Rs 4,777 crores. Bail for 60 via NLUO saved Rs 66 lakhs plus restored labour – daily wage, mason, driver.

10. Digital Social Citizenship And Way Forward

Digital Social Citizenship:

(a) Digital Prisoner ID linked Aadhaar with privacy, case status, bail eligibility;

(b) AI case tracking alerting jail superintendent, DLSA, UTRC when under trial completes one-third/one-half sentence;

(c) Digital legal literacy modules in Odia, Hindi, Bengali, Telugu, Santhali, Ho, Munda;

(d) Video-conferencing for bail (State of Maharashtra v. Praful Desai 2003);

(e) Skill certificates under PMKVY recognized via Skill India portal;

(f) PAReSHRAM-type portal for ex-prisoners linking employers. NITI Aayog AI for All (2018) emphasizes bias audit, human oversight. Comparative: Delhi Prison Legal Aid Clinic DLSA NLU Delhi 24x7; Maharashtra Prayas TISS 1990 women children; Kerala open prison Nettukaltheri work outside; Telengana video-conferencing reduced transport 80% (India Justice Report 2025). Odisha NLUO unique – academic rigor, Legal Social Fellows daily, Azim Premji Foundation, focus under trial bail, university-led sustainable via clinical legal education, replicable in NLUs network under NALSA Defense Counsel System 2022.15-Point Agenda:

National Prison Advocacy Policy MHA mandating Clinic in law universities.

i. Amend Model Manual include Fellow per 100 inmates.

ii. UTRC weekly District Judge mandatory data Sec 479.

iii. Display legal aid contacts with QR code Odia.

iv. Leaflets in Odia Santhali Ho Munda.

v. One observation home per district juveniles.

vi. Gender-sensitive infra women barracks creche R.D. Upadhyay.

vii. Transgender-inclusive NALSA Act 2019.

viii. Digital Social Citizenship digital ID AI alerts video skill PAReSHRAM.

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ix. Open prisons one per state Kerala model.

x. Reintegration fund Rs 50000 per released via MGNREGA PMKVY PMAY.

xi. Mental health one psychologist per 200 Mental Healthcare Act 2017.

xii. Annual Prison Justice Report NLUO table Assembly.

xiii. Community Panchayati Raj SHGs trade unions acceptance.

xiv. Budget 2% prison budget advocacy legal aid.

11. Conclusion

A humane effective prison system must begin proper classification inmates ensuring individuals not further harmed undifferentiated punitive environment. Separation under trial convicted juveniles adults casual habitual criminals essential not only maintaining discipline but facilitating meaningful reform. Importance engaging prisoners constructive labour safeguarding mental well-being preparing reintegration cannot overstated Yet under trial prisoners who form majority continue suffer disproportionately due systemic delays procedural shortcomings. Their plight highlights urgent need accessible legal support sustained advocacy within correctional system. In this landscape Prison Advocacy Project at NLUO collaboration Azim Premji Foundation stands out beacon transformative intervention. Ultimately realizing just dignified prison system not responsibility state alone. Calls collective commitment government judiciary legal professionals educational institutions society. Must strive transform prisons spaces reform opportunity human dignity. If commitment remains unwavering, dream of constitutional, rehabilitative, equitable prison system India will become not just ideal but lived reality – core to Rethinking Crime, Justice & Society in 21st Century.

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